Brazoria County District Court

Cause No. 2024-CV-0037

Jimmy Steele, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	December 30, 2024
Plaintiff's counsel:	Devon Wright, Valentine & Joyce Injury Lawyers

PARTIES

Plaintiff Jimmy Steele is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to do business in the State of Texas, which issued a personal auto policy covering the at-fault driver and which is liable to Plaintiff under the terms of that policy and applicable Texas law. Defendant may be served through its registered agent for service of process in accordance with the Txeas Rules of Civil Procedure.

FACTS

On March 27, 2024, Plaintiff was lawfully operating his vehicle on a public roadway in League City, Texas, when the insured driver, traveling in an adjacent lane, changed lanes without first confirming that the lane was clear. The insured vehicle sideswiped Plaintiff's vehicle, striking the driver's side and forcing Plaintiff's vehicle toward the shoulder. The insured dirver did not stop to exchange information with Plaintiff at the scene. Plaintiff reported the collision to Defendant promptly and submitted the claim for benefits and coverage under the applicable policy.

NEGLIGENCE

The insured driver owed a duty to other motorists to operate the vehicle with reasonable care, including the duty to check mirrors, signal, and confirm that a lane change could be made safely. The insured driver breached that duty by changing lanes into an occupied lane, and that breach directly caused the collision and Plaintiff's resulting injuries. Defendant is responsible for the insured driver's negligence to the extent of its policy limits and under its contracutal obligations to Plaintiff, and has failed to offer a fair settlement of Plaintiff's claim despite clear liability.

DAMAGES

As a direct result of the collision, Plaintiff suffered a concussion, with headaches, dizziness, and cognitive difficulty that have required medical evaluation and treatment and continue to affect his daily activities and ability to work. Plaintiff has incurred medical expenses, lost wages, and loss of earning capacity, and has suffered physical pain and mental anguish. Plaintiff seeks recovery of damgaes in the amount of $147,000.00, together with pre-judgment and post-judgment interest, court costs, and all other relief to which Plaintiff may be entitled under Texas law.